

**Draft for exact-file review**

Proposed language. Accepted source facts retain their original status. No execution, filing, payment or clearance is established by this edition.

Harrison Vale and Wolf Ridge subscription and rights drafts

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Status: DRAFT_FOR_REVIEW — two proposed financing instruments; unsigned

Owner: Legal / Corporate Secretary / Finance

Effective date and approval: not established for these drafts; board approval dates below are historical source facts.

1. Separate instruments and source boundary

Instrument HV applies only to the financing led by Harrison Vale Partners described in the [June 18, 2021 minutes](#). Instrument WR applies only to the financing led by Wolf Ridge Holdings described in the [October 28, 2022 minutes](#). They share proposed administrative clauses below but remain separate subscriptions, closings and rights schedules. Neither draft represents recovered definitive paper or a completed historical execution.

The issuer would be Sable Harbor, LLC, consistent with the [accepted legal identity](#). The named investment firms identify accepted lead investors, not verified signing funds or legal subscribers. Each subscriber's exact party and allocation must be supplied before execution. These drafts do not decide securities-law eligibility, offering exemption, tax treatment or enforceability. They are proposed case instruments for review, with counsel's legal analysis remaining separate.

2. Instrument HV — proposed subscription agreement

Parties for completion: Issuer: Sable Harbor, LLC. Subscriber legal party: _____.

Subscriber capacity/authority reference: _____. Actual execution date:

_____. The clauses below are offered as operative terms upon execution of this instrument and its completed schedules. Until then they impose no obligation.

HV.1 Offer, allocation and issue consideration

Subject to an approved final capitalization schedule and the conditions below, the issuer shall issue the interests identified in the HV subscription schedule to each accepting subscriber. The historical board approval is approximately \$48,000,000 of growth financing led by Harrison Vale Partners. That amount remains approximate; it is not proof that Harrison Vale alone subscribed for every dollar or that any particular amount settled on June 18.

Each final subscription entry shall state subscriber legal name, committed cash, class, number of interests, price per interest, payment condition and resulting ownership. No class preference, liquidation multiple, conversion right, anti-dilution formula or option-pool increase is implied. Until those entries are accepted, the subscription remains incomplete for execution and creates no booked receivable against an investor. The issuer shall not allocate an unexplained remainder to a fictional syndicate member.

HV.2 Permitted use and closing conditions

The issuer shall apply supported financing proceeds to the board-approved purposes: repeatable deployment, productization, reliability and security maturity, commercial growth, customer operations and finance/people systems. This proposed use covenant shall require Finance to retain an allocation by actual approved spending category. It shall not guarantee customer growth, product performance or investment returns, and it shall not portray the financing as causing the earlier Crossing.

A closing shall require an approved capitalization schedule, verified subscriber authority, required issuer approval, complete negotiated rights documents and independently checked funding instructions. The issuer shall give each subscriber the same version of the agreed instruments relevant to its commitment. A change to economic rights or total proceeds shall be returned to the proper approval body rather than concealed as a clerical correction.

HV.3 Board designation and limits

The rights schedule shall preserve the approved Harrison Vale board seat while the negotiated ownership threshold remains satisfied. Evan Mercer is the accepted initial representative effective upon closing. The exact ownership threshold is unresolved and is not invented here. No observer seat or additional director shall arise from this draft.

The designated director shall serve on Sable Harbor's board under its governing framework. No subscriber shall acquire an ordinary-course veto, operating command or privileged commercial channel. A board designation is distinct from power to instruct employees, select product priorities or direct procurement. Removal, replacement and threshold measurement mechanics shall require the final rights schedule and the governing agreement to agree before execution.

3. Instrument WR — proposed subscription agreement

Parties for completion: Issuer: Sable Harbor, LLC. Subscriber legal party: _____.
 Subscriber capacity/authority reference: _____. Actual execution date: _____.
 _____. This is a separate subscription; completion of HV does not execute WR.

WR.1 Financing and capitalization schedule

Subject to the same completion safeguards, the issuer shall accept subscriptions under a separate WR schedule for the approximately \$135,000,000 financing led by Wolf Ridge Holdings. The source board model is approximately \$900,000,000 post-money, no founder secondary, and approximately 66.5% insiders / 33.5% outside capital after the round. These are approved working economics, not an exact cap table or a determination of Wolf Ridge's individual allocation.

For review arithmetic only, \$900,000,000 less \$135,000,000 equals \$765,000,000 implied pre-money value. The ratio \$135,000,000 / \$900,000,000 equals 15% on those rounded values. That ratio does not establish an exact investor ownership percentage, resolve previous holdings or tell the reader how an option pool was treated. The final schedule shall state those mechanics explicitly rather than reverse-engineering every holder from rounded totals.

WR.2 Primary proceeds and conditions

All subscribed proceeds under the proposed instrument shall be primary company financing; no founder secondary is authorized. The final funds-flow schedule shall identify actual company proceeds, authorized transaction costs and settlement evidence separately. A transaction fee shall not be hidden as a secondary sale, and an unquoted expense shall not silently reduce a subscriber's stated commitment.

Closing conditions shall include approved definitive economics, authority verification, capital-exposure review and no material adverse change in the negotiated terms within the board's stated approval boundary. The proposed instrument shall not predetermine later ARU, Red Wash, BS&T or other physical-asset acquisitions. Each later transaction retains its own approval and accounting bridge.

WR.3 Governance rights

The rights schedule shall identify Marianne Voss as the accepted Wolf Ridge board representative effective upon closing. Thomas "Tom" Calder's appointment as an independent director shall remain independent and shall not be counted as a second Wolf Ridge seat. The instrument shall preserve distinct capital, audit/control, software and industrial perspectives without granting the subscriber an operating veto.

A subscriber request to change reserved matters, board composition, transfer rights or capital protections shall be listed as a proposed deviation requiring express approval. Silence in these drafts is not agreement to a standard venture-capital term. The exact threshold, designation duration and replacement process remain unestablished unless a controlling instrument supplies them.

4. Common proposed representations

The issuer shall represent only upon execution, and subject to an identified disclosure schedule, that its approving body has authorized the specific issue, that the capitalization schedule identifies the interests to be issued, and that the signatory has authority to bind the issuer within that approval. These are proposed representations, not findings that the missing documents have been verified. The schedule shall disclose inconsistencies rather than certify a reconstructed cap table as complete.

Each subscriber shall represent its verified identity, authority and capacity to enter the accepted instrument and shall acknowledge receipt of the agreed disclosure package. Any required investor qualification statement shall be collected and reviewed in the appropriate controlled setting. This public case draft supplies no private investor information and does not select a real-world offering exemption by assumption.

Neither party shall rely on an oral side promise inconsistent with the final signed documents. A side letter shall be indexed by party, affected clause, economic effect and approval reference. The Secretary shall compare all side letters for conflicts before closing. This proposed control does not imply that any side letter existed historically or that all investors had identical negotiated rights.

5. Common proposed information and conduct rights

Subject to final acceptance, the issuer shall provide a quarterly management financial package within 45 days after quarter-end and an annual management package within 120 days after year-end. These are new proposed delivery terms, not historical obligations or a promise of audited statements. Each package shall identify its reporting basis, scope, significant estimates and unresolved reconciliation items. A correction shall retain the previous version and explain the changed facts.

An investor receiving information shall use it to monitor its investment, restrict access to authorized advisers, preserve confidentiality and avoid further disclosure except under agreed legal requirements. Information rights shall not grant unrestricted access to J2 material, privileged legal advice, individual personnel files or third-party confidential data. Where a lawful or contractual restriction prevents delivery, the issuer shall explain the category withheld and propose an appropriate alternative through Legal.

An investor could request clarification of a reported discrepancy through the agreed contact, but could not directly command a business line or require a preferred professional conclusion. Access to board materials shall follow the board's established rules. The drafts create no separate management committee controlled by financing participants.

6. Common proposed payment, amendment and failure provisions

No payment instruction is contained in this public draft. Treasury shall authenticate the final recipient and settlement reference through a separately controlled process, and Finance shall reconcile subscribed, received and issued amounts before updating the capital ledger. A pending transfer is not cleared funds. A proposed closing statement shall identify unresolved receipts without inventing a bank acknowledgment.

Before closing, a material discrepancy in party identity, capitalization or authority shall suspend the affected subscription. The parties shall either correct it through the appropriate approval process or terminate that uncompleted subscription under the final agreement. This provision shall not retrospectively unwind accepted historical financing facts. Return-of-funds terms and any termination cost allocation require separate acceptance before real funds could be involved.

Amendments shall be written, identify the affected instrument and clause, and receive the approvals required by the governing documents. A clerical correction could not change price, ownership, rights or the effective closing date. No deadline or silence shall create deemed acceptance of a material term under these proposed clauses.

7. Completion schedules

Field	HV instrument	WR instrument
Board approval reference	June 18, 2021	October 28, 2022
Approximate gross financing	\$48,000,000	\$135,000,000
Approximate post-money model	Unestablished here	\$900,000,000
Exact subscriber legal party/allocation	Unresolved	Unresolved
Exact class, quantity and unit price	Unresolved	Unresolved
Designation threshold	Unresolved	Unresolved
New reporting deadlines	Proposed 45/120-day terms	Proposed 45/120-day terms
Execution and settlement evidence	Not supplied	Not supplied

Legal would return a marked draft showing accepted, rejected and still-open terms; Finance would attach a reconciled capitalization and funds-flow schedule; the Secretary would identify actual approvals. No signature blocks are completed and no execution date is assigned. Review of the document design is separate from acceptance of these proposed legal and commercial terms.

Separate HV / WR execution and subscription sheet

Complete one sheet per applicable instrument. These blank fields are review placeholders, not signatures or evidence of acceptance. No instrument is effective solely because this sheet is printed.

Completion field	Entry
Entity / instrument / version	_____
Approving capacity and authority source	_____
Actual adoption or execution date	_____
Completed economic / ownership / collateral schedule reference	_____
Conditions satisfied; unresolved exceptions	_____
Authorized signatory name and capacity	_____
Signature — blank, not executed	_____
Counterparty or separate approving capacity, if applicable	_____
Counterparty signature and actual date — blank	_____

Attach one allocation line per verified subscriber: subscriber legal name; instrument HV or WR; class; quantity; unit price; subscription amount; closing condition; and receipt reference. All unestablished entries remain blank. The two round totals and their rights schedules are not consolidated into one subscription.